

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: September 03, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Palmer vs. Holmes 23-01362888	Plaintiff James Palmer ("Plaintiff") moves to compel defendant Warren Holmes ("Defendant") to serve further responses without objections to the first set of Special Interrogatories served on August 8, 2025 and for an order imposing monetary sanctions against Defendant in the amount of \$12,331.50. The Court declines to consider Defendant's untimely opposition, which was filed only six court days before the hearing date, as Defendant's dilatory conduct denied Plaintiff a reasonable opportunity to prepare a reply.

		Plaintiff seeks to compel further responses to the Special Interrogatories, arguing that Defendant's initial and supplemental responses contain waived objections and improperly rewrite, renumber, or reframe the interrogatories actually served. Defendant failed to serve timely initial responses. Thus, any objections have been waived. (Code Civ. Proc., § 2030.290(a).) The fact that Defendant's initial and supplemental responses contain objections alone warrants further responses. The Court finds sanctions to be warranted pursuant to Code of Civil Procedure section 2030.290(c). In light of the above, the Motion to Compel Further is GRANTED. Defendant is ORDERED to serve further, verified responses without objections to Plaintiff's first set of Special Interrogatories within 15 days. Defendant is further ORDERED to pay sanctions in the amount of \$2,000 within 30 days. <i>Moving party to give notice.</i>
102	Chan vs. BrandRep LLC, 25-01532021	<i>Off-Calendar.</i>
103	Weaver vs. Architectural, Inc., 23-01316480	Defendants, Sebastian Ernesto Amighini and Karina Andrea Cuevas (collectively, "Defendants"), move for an order to set aside the entries of default and any default judgments as void for lack of personal jurisdiction due to absence of valid service. Defendants contend that the Court never acquired personal jurisdiction over them and that the defaults and default judgment are void for lack of proper service under Code of Civil Procedure section 473(d) as Plaintiffs failed to satisfy the reasonable diligence requirements in the Hague Convention Article 1 and Code of Civil Procedure section 415.50, such that service by publication was not proper on Defendants who resided in Argentina and Defendants were not served in accordance with California law or the Hague Evidence Convention. Plaintiffs, Greg Weaver and Haig Youredjian (collectively, "Plaintiffs") contend that Defendants were properly served with the summons by publication and that the entries of